

5.5. Corrections under Rule 139 EPC

5.5.1 Legal provisions

Under R. 139 EPC (formerly R. 88 EPC 1973), mistakes in any document filed with the EPO may be corrected on request. However, if the request for such correction concerns the description, claims or drawings, the correction must be obvious in the sense that it is immediately evident that nothing else would have been intended than what is offered as the correction. Re corrections under R. 139, second sentence, EPC see also chapter II.E.4. "Correction of errors in the description, claims and drawings – Rule 139 EPC".

5.5.2 No replacement of invention

The decisions below are mainly about applying R. 88 EPC 1973, which however has not substantively changed; in R. 139 EPC, only minor editorial amendments to all three language versions have been made.

In G. 2/95 (OJ 1996, 555) the Enlarged Board held that the complete documents forming a European patent application, that is the description, claims and drawings, cannot be replaced by way of a correction under R. 88 EPC 1973 by other documents which the applicants had intended to file with their request for grant (overruling T. 726/93, OJ 1995, 478). The interpretation of R. 88 EPC 1973 had to be in accord with Art. 123(2) EPC 1973. This meant that a correction under R. 88 EPC 1973 was thus bound by Art. 123(2) EPC 1973, in so far as it related to the content of the European patent application as filed (see G. 3/89 (OJ 1993, 117). Such a correction could therefore be made only within the limits of what a skilled person would derive directly and unambiguously, using common general knowledge and seen objectively and relative to the date of filing, from the whole of the documents forming the content of the European patent application (referring to G. 3/89).

The content of the European patent application was formed by the parts of the application which determined the disclosure of the invention, namely the description, claims and drawings (referring to G. 3/89). As a result of the prohibition of extension under Art. 123(2) EPC 1973, documents other than the description, claims and drawings could only be used in so far as they were sufficient for proving the common general knowledge on the date of filing (referring to G. 3/89). On the other hand, documents not meeting this condition could not be used for a correction even if they were filed together with the European patent application. These included, inter alia, priority documents, the abstract and the like (referring to G. 3/89). See also J. 5/06.

In decision J. 21/94 of 20 January 1997 and terminating the appeal proceedings following the referral to the Enlarged Board of Appeal dealt with in G. 2/95 (OJ 1996, 555), the Legal Board concluded that the originally disclosed invention B could be accorded a filing date even if there were contradictions between the request for grant (which related to invention A) and the application documents (which disclosed invention B). If a further invention (here

invention A) was disclosed during grant proceedings, it could not be given a filing date unless it was clear that protection for this invention was now sought.

In J 5/06, the board referred to J 21/94 and stated, if an application is accorded a date of filing pursuant to Art. 80 EPC 1973, the technical content of the application is definitively established (G 2/95). Exchanging this technical content with another one is a technical modification. The application of the strict requirements of either Art. 123(2) or R. 88 EPC 1973, second sentence, is not limited to those circumstances when a minor part of a complete description needs to be interpreted relative to the rest, but these requirements are applicable to any suggested amendment or correction. This means that the technical content of the application as filed cannot simply be discarded, even if it does not correspond to the intention of the applicant, but must be considered when deciding whether an amendment or correction is allowable or not. The intention of the applicant at the time of filing (or even later) is immaterial in establishing the technical content of a patent application.

In J 16/13 the appellant requested correction of the wrongly filed description and claims under R. 139 EPC. The board stated that the skilled person would have immediately recognised the mismatch between the drawings and the other parts of the description. However, it was not "immediately evident that nothing else would have been intended than what is offered as the correction". R. 139 EPC required certainty as to the only correction possible; here, that was lacking. The board noted that the case before it was similar to J 5/06, in which it had been confirmed that the earlier case law (up to T 726/93) holding that R. 88 EPC 1973 had to be applied in the light of the applicant's intentions had clearly now been overturned (see G 2/95, J 21/94, G 3/89), and the request that the patent specification be corrected under R. 139 EPC was refused.

5.5.3 Extent of competence of the Receiving Section for corrections under Rule 139 EPC

R. 139 EPC, second sentence, (previously R. 88 EPC 1973) lays down as a condition for acceptance of a request for correction concerning a description, claims or drawings that a correction must be obvious in the sense that it is immediately evident that nothing else would have been intended than what is offered as the correction. This often requires a technical examination of the file, so that the question has arisen under R. 88 EPC 1973 whether the Receiving Section was competent to deal with the correction in such a case.

In decision J 4/85 (OJ 1986, 205) the board made it clear that the duties of the Receiving Section did not include a technical examination of the file; it should not, therefore, take a decision on a request for correction necessitating such an examination, but should leave the request in abeyance until the file had been transferred to the examining division (likewise J 5/12).

However, in J 33/89 (OJ 1991, 288) the board pointed out that the Receiving Section remained competent for decisions on requests for correction of drawings under R. 88, second sentence, EPC 1973 unless the request necessitated a technical examination. In J 12/14 the board agreed, and decided that the question of what technical features the

figures in the drawings showed with respect to the claimed invention was not part of the formal examination procedure before the Receiving Section.

In J 5/01 the board decided that the wording of Art. 16 and 18 EPC 1973 as they stood left no room for an interpretation according to which the responsibility for a European patent application could be split between the Receiving Section and the examining division. The clear and mutually exclusive allocation of this responsibility in the EPC prevailed over considerations of procedural or cost economy (likewise T 2411/10; contrary to J 8/82, OJ 1984, 155). Thus, relying on the point in time at which a request for correction was made rather than on the two acts mentioned in Art. 16 EPC 1973 (request for examination or indication under Art. 96(1) EPC 1973) would be *contra legem*.

The board pointed out that corrections under R. 88 EPC 1973 were not a matter which formed part of the examination on filing or of the examination as to formal requirements (Art. 90 and 91 EPC 1973). Rather, the wish or the need for a correction might arise during the whole grant procedure and even afterwards, e.g. during opposition proceedings. For corrections necessitating a technical examination see J 4/85, OJ 1986, 205.

5.6. Change of date of filing

The Legal Board of Appeal held in J 14/90 (OJ 1992, 505) that re-dating an application could not be justified on the grounds that the later date would permit the granting of a European patent for a new Contracting State. The designation of a state formed part of the request for grant of a patent, and hence belonged to the documents making up a patent application, which meant that in principle there was no reason why the filing date of an application should not be changed to the date on which a further state was designated. What was lacking were the necessary legislative provisions which would make this possible. In the case before the board there were no special circumstances, as had been the case with decision J 5/89. On the contrary the public interest and the need for consistency ruled out a re-dating.

In J 5/89 the Legal Board of Appeal had stated that it was clear that Art. 80 EPC set a date **before** which a date of filing could not be accorded to an application, but it did not follow that an application could not be given a **later** filing date with the consent of the applicant, provided that there was no detriment to the public interest, in circumstances in which the applicant had been **misled** by the EPO into not filing a new application entitled to that later filing date. See also chapter III.A. "The principle of the protection of legitimate expectations".

J 18/90 (OJ 1992, 511) followed J 14/90 (OJ 1992, 505) in holding that the express designation of a new Contracting State in a European patent application shortly before entry into force of the EPC for that state was no justification for deferring the filing date until the date of entry into force. However, the Legal Board added in J 18/90 that such express designation might, after checking with the applicant, be interpreted as meaning that the applicant did not want a filing date earlier than the date on which the EPC entered into force for the state concerned.

In **T.683/06** the appeal had been lodged against a decision of the examining division to refuse a divisional application. The parent application had been sent by fax during the night. Some of the documents had arrived before midnight, some of them after midnight. According to the examining division's contested decision, the divisional application extended beyond the content of the parent application (Art. 76(1) EPC) because the claims in the divisional application were supported only by those parts of the documents for the parent application which had arrived by fax after midnight and in the light of the applicant's decision in favour of the earlier filing date did not belong to the parent application.

In its main request, the appellant sought to have the date after midnight recognised as the parent application's date of filing. However, the EPC makes no provision for a filing date once fixed to be changed subsequently. Only R. 56 EPC enables the filing date to be moved back if missing drawings or parts of the description are filed later. The correction of errors in filed documents in accordance with R. 139 EPC may also result in a change of filing date. But the case in point involved no such correction. Nor was a correction possible under R. 140 EPC.

6. Examination of formal requirements

Under Art. 90(3) EPC, if the patent application is accorded a date of filing, the EPO examines, in accordance with the Implementing Regulations, whether the following requirements have been satisfied:

- Art. 14 EPC, concerning the language of the patent application (see chapter III.F.1.);
- Art. 78 EPC, concerning the requirements of a European patent application (see in this chapter IV.A.6.1.);
- Art. 81 EPC, concerning the designation of the inventor (see in this chapter IV.A.6.2.);

as well as any requirements laid down in the Implementing Regulations, and, where applicable;

- Art. 88 EPC, concerning claiming priority (see in this chapter IV.A.8.);
- Art. 133 EPC, concerning general principles of representation (see chapter III.V.);
- any other requirement laid down in the Implementing Regulations (see in this chapter IV.A.6.3.).

Under Art. 90(4) EPC, where the EPO notes that there are deficiencies which may be corrected, it shall give the applicant an opportunity to correct them. If any deficiency noted under Art. 90(3) EPC is not corrected, the patent application shall be refused unless the EPC provides a different legal consequence (Art. 90(5) EPC).

In **J.18/08**, the Legal Board held that, where an application is refused under Art. 90(5) EPC, the deficiency on which the refusal decision was based can be corrected

at the appeal stage. From this it follows that if an appeal is filed against such a refusal under Art. 90(5) EPC, the board has to examine whether the deficiency noted has been corrected or not. The present case was different from the situation where the non-observance of a time limit automatically leads to the application being deemed to be withdrawn. In such a case the legal consequence automatically ensues when an act required within a specific time limit is not performed, without any decision to be taken concerning the refusal of the application (R. 112 EPC).

6.1. Requirements of a European patent application (Article 78 EPC)

Under Art. 78(1) EPC a European patent application shall contain:

- a request for the grant of a European patent;
- a description of the invention;
- one or more claims;
- any drawings referred to in the description or the claims;
- an abstract

In addition it shall satisfy the requirements laid down in the Implementing Regulations.

Under Art. 78(2) EPC a European patent application is subject to the payment of the filing fee and the search fee. If the filing fee or the search fee is not paid in due time, the application shall be deemed to be withdrawn.

In J 13/04, the patent application had been validly filed with the French Patent Office INPI. The board observed that, under Art. 78(2) EPC 1973, the time limit for payment of the filing and search fees in the case at hand could not be determined on the basis of either the date on which the application was forwarded to the EPO or the date on which the receipt had been issued under R. 24(2) EPC 1973 but rather only on the basis of the date on which the application had been received by the competent national authority, provided that the date of that filing was also the date of filing within the meaning of Art. 80 EPC 1973.

6.2. Designation of the inventor

Designation of the inventor is governed by Art. 81 and R. 19 EPC. The inventor is to be designated in the European patent application. If the applicant is not the inventor or is not the sole inventor, the designation must contain a statement indicating the origin of the right to the European patent (Art. 81 EPC).

Under R. 19 EPC, the request for grant of a European patent shall contain the designation of the inventor. If the designation of the inventor is not made in accordance with R. 19 EPC, the EPO shall inform the applicant under R. 60(1) EPC that the application will be refused unless the designation is made within sixteen months of the date of filing of the application,